

1.

CASE #	CASE NAME	HEARING NAME
CVPS2501436	NATHANSON VS BJJ, LLC	MOTION TO DETERMINE GOOD FAITH SETTLEMENT ON 2ND AMENDED COMPLAINT OF LARRY NATHANSON BY BJJ, LLC, JEFF HOBSON

Tentative Ruling: No tentative ruling. Hearing is continued to 11.24.26.

Moving parties are directed to either resubmit the Good Faith Settlement Determination to the court and to serve all parties for review or vacate the motion in light of the court's denial of submitting the Determination Motion under seal.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2501436	NATHANSON VS BJJ, LLC	MOTION FOR ORDER TO SEAL DOCUMENT(S) BY BJJ, LLC

Tentative Ruling: The general rule is that unless confidentiality is required by law, court records are presumed to be open to the public. (California Rules of Court, rule 2.550(c).) A document cannot be filed under seal without court approval. (California Rules of Court, rule 2.551(a).) "The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties." (*Ibid.*) "A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing." (California Rules of Court, rule 2.551(b)(1). California Rules of Court, rule 2.551(b)(4) also provides that the party requesting that a record be filed under seal must lodge it with the court when the motion or application is made and, pending the determination of the motion or application, the lodged record will be conditionally under seal. Documents can only be sealed if the court expressly finds there is an existing overriding interest to support the sealing; there is a substantial probability that interest will be prejudiced if the documents are not sealed; sealing is narrowly tailored to serve the overriding interest; and there is no less restrictive means of achieving the overriding interest of the parties. (*Universal City Studios v. Superior Court* (2003) 110 Cal.App.4th 1273, 1279.)

The mere showing that there is an agreement between the parties to keep information confidential without the showing of specific serious injury is not sufficient to justify the sealing of documents. (*Id.* at 182.) "[T]he party seeking closure or sealing must prove prejudice to that interest is substantially probable." (*Id.* at 183.) "There must be 'a specific showing of serious injury.' '[S]pecificity is essential. Board allegations of harm, bereft of specific examples or articulated reasoning, are insufficient.'" (*McNair v. National Collegiate Athletic Assn.* (2015) 234 Cal.App.4th 25, 35.)

The information that Moving Defendants propose to redact is the settlement amount, the amount allocated to each plaintiff, one of the Plaintiff's birthdays, the amount that Marvyn's Magic sold for in 2021, the injuries/damages Plaintiffs assert they have sustained, and the Moving Defendants' insurance policy limits. While this information is personal to the parties, Marvyn's Magic and Hobson have failed to provide any evidence to establish that they will sustain specific serious injury if this information is not sealed. While Moving Defendants contend they will be prejudiced if the documents are not sealed,

they provide no evidence to support this and only make a conclusory assertion of prejudice. Due to this, Moving Defendants have failed to establish that the information at issue should be sealed.

Defendants BJJ, LLC dba Marvyn's Magic Theater and Jeff Hobson's Motion to File Good Faith Settlement Determination Motion Under Seal DENIED.

Documents submitted to the court for review shall be returned to moving parties, with the option Defendants resubmit the GFS Determination motion after service upon all parties.

Case Management Conference confirmed for 11.24.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2507178	DANIEL KELLY, AN INDIVIDUAL VS SAFEWAY INC.	MOTION TO BE RELIEVED AS COUNSEL FOR DANIEL KELLY, AN INDIVIDUAL

Tentative Ruling: No tentative ruling. Motion is continued to 10.06.26. Proofs of service for the Notice of Motion as well as the Declaration in Support of Motion to be Relieved do not indicate that Defendant Diebold Nixdorf, Inc. was served with the indicated documents. Counsel for Plaintiff directed to submit proofs of service of those documents no later than 9.28.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2509979	MAYS VS FCA US LLC	MOTION FOR SANCTIONS BY FCA US LLC

Tentative Ruling: CCP § 871.26 provides for expedited discovery procedures in lemon law actions. Specifically, CCP § 871.26(b) states: "Within **60 days** after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an **initial disclosure and documents** pursuant to subdivision (f), (g), and (h)." (CCP § 871.26(b) [emphasis added].)

CCP § 871.26(f) requires the plaintiff to provide 7 categories of documents, including the sales or lease agreement, current registration, finance and account information, repair orders, documents supporting incidental damages, information concerning the vehicle's market value, and written presuit communications with the manufacturer. (CCP § 871.26(f).)

CCP § 871.26(g) requires the plaintiff to disclose 11 categories of information, including the mileage, drivers, possession, location, collision history, aftermarket modifications, repair presentations not reflected in repair orders, pre-suit communications, and any need for an interpreter. (CCP § 871.26(g).)

CCP § 871.26(j)(1) provides, in pertinent part: "Unless the party failing to comply with this section shows **good cause**, . . . a court **shall** impose . . . [a] one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney [], paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b)." (CCP § 871.26(j)(1) [emphasis added].)